

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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HECTOR LOPEZ, BRENDA CONCEPCION,
and CONSUELA PEREZ,

11 CV 2607 (CBA) (RER)

Plaintiffs,

-against-

**SECOND
AMENDED COMPLAINT**

THE CITY OF NEW YORK, ELVIS MERIZALDE,
and ROSEMARIE HARTY,

Defendants.

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Plaintiffs Hector Lopez, Brenda Concepcion, and Consuelo Perez, by their attorneys, Reibman & Weiner, as and for their Second Amended Complaint, hereby allege as follows, upon information and belief:

PARTIES, VENUE and JURISDICTION

1. At all times hereinafter mentioned plaintiff Hector Lopez was a male resident of Kings County, within the State of New York.

2. At all times hereinafter mentioned plaintiff Brenda Concepcion was a female resident of Queens County, within the State of New York.

3. At all times hereinafter mentioned plaintiff Consuelo Perez was a female resident of Kings County, within the State of New York.

4. At all relevant times hereinafter mentioned, defendant City of New York ("New York City"), was and is a municipal corporation duly organized and existing

under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department (“NYPD”), and their employees.

5. At all relevant times hereinafter mentioned, defendant Elvis Merizalde was employed by the defendant City of New York as a member of the NYPD, assigned shield number 26802, tax number 946000. Merizalde is sued in both his individual and official capacities.

6. At all relevant times hereinafter mentioned, defendant Rosemarie Harty was employed by the defendant City of New York as a member of the NYPD, whose shield number is believed to be 40562. Harty is sued in both her individual and official capacities.

7. At all relevant times herein each of the individual defendants were government actors acting in the course of their employment with the NYPD under color of law.

8. Original jurisdiction of this Court is founded upon 28 U.S.C. §1331, *et seq.*, and 42 U.S.C. §1983. The Court has jurisdiction over the state claims under the legal principles of supplemental jurisdiction.

9. Venue is properly laid in this District pursuant to 28 U.S.C. §1391, *et seq.*, because the events complained of herein occurred within the Eastern District of New York, and because it is the district of residence for the plaintiffs.

10. Notices of Claim were timely served by the plaintiffs upon the defendant City of New York.

11. At least thirty days have passed since plaintiffs' service of their Notices of Claim, and adjustment and payment thereof has been neglected or refused by the City of New York.

12. Plaintiffs have complied with all of obligations, requirements and conditions precedent to commencing an action against New York City under New York law.

RELEVANT FACTS

13. On March 1, 2010, at or around 6:50 p.m., plaintiffs drove to a building located on 4th Avenue between 57 and 58 Streets in Brooklyn, New York. Plaintiff Lopez was the driver of the vehicle.

14. The plaintiffs were there because Ms. Perez, who is Mr. Lopez's mother, wanted to check on her mother's apartment, which is located at or around 5720 4th Avenue.

15. Her mother was in a local area hospital and was scheduled for surgery the following morning. The plaintiffs wanted to make sure the apartment was properly locked and secured.

16. Mr. Lopez double parked the car and Ms. Perez exited the vehicle and entered the apartment building.

17. While plaintiffs Lopez and Concepcion were waiting in the vehicle, defendants Merizalde and Harty arrived in a marked police vehicle.

18. The defendants pulled up behind plaintiffs' vehicle and indicated that

the plaintiffs were to move the vehicle. In response, Lopez drove forward several car lengths and pulled into a spot further down the block from his grandmother's apartment building. The plaintiffs then exited the vehicle.

19. Merizalde elected to respond to Lopez's double parking of the vehicle by issuing him a summons. Observing that Merizalde had begun to write him a ticket, Lopez took photographs of Merizalde and the police car. Lopez then entered his grandmother's apartment building to join his mother.

20. When Lopez returned to the vehicle a few minutes later, with the other plaintiffs, he saw Merizalde had just completed writing Lopez's summons for double parking.

21. As he watched Merizalde place the summons on his vehicle, Lopez mimed clapping his hands and sarcastically thanked the defendant.

22. Merizalde responded by grabbing Lopez by the arms and forcibly spinning him around and handcuffing him. When the 60 year-old Ms. Perez inquired as to why her son was being arrested, Merizalde told her to step back and roughly shoved her backwards.

23. Lopez was then placed in the defendants' police car and driven away.

24. After several minutes, the officers stopped the car and Lopez observed Merizalde on either the phone or the police radio.

25. The defendants then made a u-turn and returned to the scene of the arrest.

26. Other officers also came to the arrest scene, presumably because of the

call made by Merizalde from the police car before the defendants returned to the scene.

27. Upon their arrival the officers exited the vehicle and arrested or caused plaintiffs Perez and Concepcion to be arrested.

28. The plaintiffs were then transported to a local NYPD station house and processed. Eventually they were brought to the Red Hook Community Court, where they were kept in holding cells for many more hours, before they were ultimately arraigned.

29. Defendant Merizalde swore out charges against plaintiff Lopez, alleging that plaintiff yelled and cursed at him for an extended period of time, causing a large crowd to gather. Merizalde further alleged that plaintiff was “flailing” his arms to avoid arrest. Based on these allegations by the defendant, Lopez was charged with four counts of disorderly conduct and one count of resisting arrest.

30. The factual allegations sworn to by Merizalde against plaintiff Lopez were materially false and Merizalde deliberately made these false allegations to justify the arrest of the plaintiff.

31. Merizalde did not and could not base his arrest of Lopez on the alleged double parking because, even if double parking was an arrestable offense, Merizalde had already chosen to issue a summons for the alleged offense and had completed and issued that summons.

32. Moreover, no rational officer could have reasonably believed that probable cause existed to arrest Lopez for a driving infraction, or that it was reasonable to arrest Lopez for a driving infraction, at any time, much less after Merizalde had already

issued the summons.

33. Defendant Merizalde also swore out charges against Perez and Concepcion, alleging that they interfered with his arrest of Lopez when these two plaintiffs, “acting in concert, each aiding the other in that . . . the defendants did grab the informant’s arm and jacket causing said jacket to rip.” Based on these allegations by the defendant, Perez and Concepcion were both charged with one count of criminal mischief and one count of obstructing governmental administration.

34. The factual allegations sworn to by Merizalde against plaintiffs Perez and Concepcion were materially false and Merizalde deliberately made these false allegations to justify the arrest of the plaintiffs.

35. In actuality, defendants lacked probable cause to arrest any of the plaintiffs and no reasonable officer could have believed such cause existed.

36. As a direct and proximate cause of the false allegations sworn to by Merizalde, each of the plaintiffs arraigned before a Judge in Kings County Criminal Court was released on his or her own recognizance after being held for more than 22 hours.

37. Harty witnessed all of the events leading up to and including the arrest of the plaintiffs and knew or should have known that Merizalde’s use of force against and arrest of plaintiffs was unlawful.

38. Notwithstanding her observations, Harty failed to take any steps to intervene in Merizalde’s misconduct, either at the time of the events or at any time thereafter, and permitted the plaintiffs’ arrests and imprisonment to proceed.

39. Eventually, each of the plaintiffs' criminal cases were adjourned in contemplation of dismissal.

40. All times relevant herein, the individual defendants were acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

41. Plaintiffs repeat the allegations contained in paragraphs "1" through "40" above as though stated fully herein.

42. Defendants willfully and intentionally seized, detained and arrested plaintiffs without probable cause, and without a reasonable basis to believe such cause existed.

43. By so doing, the individual defendants, individually and collectively, subjected the plaintiffs to false arrest and imprisonment, unlawful searches of person and property, and denial of due process, and thereby violated, conspired to violate, and aided and abetted in the violation of plaintiffs' rights under the Fourth and Fourteenth Amendments of the United States Constitution.

44. In addition, Merizalde's use of force and arrest of Hector Lopez was carried out in retaliation for his sarcastic response to Merizalde's issuance of a traffic summons. This retaliatory arrest, made in direct response to Lopez's engagement in

protected speech, also violated Lopez's rights under the First Amendment of the United States Constitution.

45. Defendant Harty was aware of the violation of plaintiffs' rights but failed to intervene or take any action to protect plaintiffs from the defendants' violation of their constitutional rights.

46. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiffs to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of their constitutional rights.

SECOND CAUSE OF ACTION

47. Plaintiffs repeat the allegations contained in paragraphs "1" through "46" above as though stated fully herein.

48. Defendant City of New York was responsible for ensuring that reasonable and appropriate levels of supervision were in place within and/or over the NYPD.

49. Defendant had actual or constructive knowledge that there was inadequate supervision over and/or within the NYPD with respect to its members' abuse of their authority, use of excessive force, abuse of arrest powers, and other blatant violations of the United States Constitution and the rules and regulations of the NYPD. Despite ample notice of inadequate supervision, defendants took no steps to ensure that reasonable and

appropriate levels of supervision were put place to reasonably ensure that NYPD members engaged in police conduct in a lawful and proper manner, including their use of their authority as law enforcement officers with respect to the general public, including, and specifically, the plaintiffs herein.

50. The defendant City of New York deliberately and intentionally chose not to take action to correct the chronic, systemic and institutional misuse and abuse of police authority by its NYPD employees, and thereby deliberately and intentionally adopted, condoned, and otherwise created through deliberate inaction and negligent supervision, an NYPD policy, practice and custom of utilizing illegal and impermissible searches, arrests and detentions, and the manufacturing of evidence, in the ordinary course of NYPD business in flagrant disregard of the state and federal constitutions, as well as the Patrol Guide, up to and beyond the plaintiffs' arrest.

51. All of the acts and omissions by the individual defendants described above were carried out pursuant to overlapping policies and practices of the municipal defendant in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures and rules of the City and the NYPD, all under the supervision of ranking officers of the NYPD

52. The aforementioned customs, practices, procedures and rules of the CITY and the NYPD include, but are not limited to, the following unconstitutional practices:

- a. Using excessive force on individuals, including but not limited

- to those who have already been handcuffed;
- b. Failing to supervise, train, instruct and discipline police officers and encouraging their misconduct;
- c. Discouraging police officers from reporting the corrupt or unlawful acts of other officers;
- d. Retaliating against officers who report police misconduct; and
- e. Failing to intervene to prevent the above-mentioned practices when such intervention is reasonably available.

33. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following, non-exhaustive list of civil actions:

- a. *Thompson v. City of New York*, 10-CV-3603 (ARR) (SMG) (E.D.N.Y.);
- b. *Lotorto v. City of New York*, 10-CV-1223 (ILG) (JMA) (E.D.N.Y.);
- c. *Zabala v. City of New York*, 37711/2010 (Sup. Ct., Kings Co.);
- d. *Ashe v. City of New York*, 09-CV-9696 (GBD) (THK) (S.D.N.Y.);
- e. *Long v. City of New York*, 09-CV-9216 (AKH) (S.D.N.Y.);
- f. *Moise v. City of New York*, 09-CV-9855 (DC) (JLC) (S.D.N.Y.)
- g. *Taylor-Mickens v. City of New York*, 09-CV-7923 (RWS) (SD.N.Y.)
- h. *Carmody v. City of New York*, 05-CV-8084 (HB), 2006 U.S. Dist. LEXIS 83207

- i. *McMillan v. City of New York*, 04-CV-3990 (FB) (RML) (E.D.N.Y.);
- j. *Avent v. City of New York*, 04-CV-2451 (CBA) (CLP) (E.D.N.Y.);
- k. *Smith v. City of New York*, 04-CV-1045 (RRM) (JMA) (E.D.N.Y.);
- l. *Powers v. City of New York*, 04-CV-2246 (NGG) (E.D.N.Y.);
- m. *Dotson v. City of New York*, 03-CV-2136 (RMB) (S.D.N.Y.);
- n. *Nonnemann v. City of New York*, 02-CV-I0131 (JSR) (AJP) (S.D.N.Y.);
- o. *Richardson v. City of New York*, 02-CV-3651 (JG) (CLP) (E.D.N.Y.);
- p. *Barry v. New York City Police Department*, 01-CV-10627 (CBM) (S.D.N.Y.);
- q. *Walton v. Safir*, 99-CV-4430 (AKH) (S.D.N.Y.);
- r. *White-Ruiz v. The City of New York*, 93-CV-7233 (DLC) (MHD) (S.D.N.Y.);
- s. *Ariza v. City of New York*, 93-CV-5287 (CPS) (E.D.N.Y.);

34. In an Order dated November 25, 2009, in *Colon v. City of New York*, 09-CV-0008 (E.D.N.Y.), the Hon. Jack B. Weinstein stated:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City

Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration -- through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department -- there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.

35. Furthermore, more than half the time that the Civilian Complaint Review Board refers substantiated complaints against officers to the NYPD for disciplinary action, the NYPD either simply issues a verbal warning or drops the charges altogether.

36. It is therefore clear that the municipal defendant has not only tolerated, but actively fostered a lawless atmosphere within the NYPD and that the City of New York was deliberately indifferent to the risk that the inadequate level of supervision would lead to the violation of individuals' constitutional rights in general, and caused the violation of plaintiffs' rights in particular.

37. By reason thereof, defendant has violated 42 U.S.C. §1983 and caused plaintiffs to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of their constitutional rights.

THIRD CAUSE OF ACTION

38. Plaintiffs repeat the allegations contained in paragraphs "1" through "47" above as though stated fully herein.

39. Plaintiffs were subjected to false arrest and false imprisonment by the defendants.

40. At no time did defendants have any legal basis for arresting or imprisoning plaintiffs, nor was there any reasonable basis to believe said conduct set forth herein was lawful, reasonable or otherwise appropriate.

41. The defendants are therefore liable to plaintiffs for false arrest and false imprisonment.

42. By reason thereof, defendants have caused plaintiffs to suffer emotional and physical injuries, mental anguish, the loss of their constitutional rights, and unlawful incarceration.

DEMAND FOR A JURY TRIAL

Pursuant to Fed. R. Civ. P. 38, plaintiffs hereby demand a jury trial of all issues capable of being determined by a jury.

WHEREFORE, the plaintiffs demand judgment against defendants jointly and severally as follows:

- i. on the causes of action one through three, actual and punitive damages in an amount to be determined at trial;
- ii. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of this action; and
- iii. such other relief as the Court deems just and proper.

Dated: Brooklyn, New York
December 13, 2011

REIBMAN & WEINER

/s/

By: _____

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